

Amendment No. 1 to SB1401

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1401

House Bill No. 1245*

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) The Tennessee advisory commission on intergovernmental relations (TACIR) shall study:

(1) The current structure of licensing and oversight mechanisms for residential facilities licensed by, approved by, operated by, or contracted with this state, the department of children's services, or a juvenile court for the housing and treatment of juvenile offenders;

(2) Licensing and oversight models used by other states to ensure compliance, safety, and adequacy of services for juvenile offenders in residential facilities;

(3) Licensing and oversight models used by other state agencies within this state to ensure compliance, safety, and adequacy of services in other types of residential facilities, such as prisons and jails, mental health facilities, and facilities for persons with intellectual and developmental disabilities; and

(4) Opportunities for improvement in this state's licensing and oversight mechanisms for residential facilities housing and treating juvenile offenders.

(b) As used in this act:

(1) "Licensing and oversight" include, but is not limited to, formal licensing processes and regulations, facility inspections, compliance

reviews, complaint, investigatory, and enforcement mechanisms, as well as youth, family, and community input processes; and

(2) "Residential facilities" include local juvenile detention centers and other facilities for the housing and treatment of juveniles detained prior to an adjudicatory hearing, as well as facilities for the housing and treatment of juvenile offenders who have been adjudicated delinquent and committed to the custody of the department of children's services, including temporary and transitional placements, assessment centers, shelters, out-of-state placements, and any other location where juvenile offenders in custody of the department reside while in state custody.

(c) TACIR may request information and input from the department of children's services, the department of mental health and substance abuse services, the department of education, and other appropriate state and local governmental entities, as necessary. Each such entity must comply with TACIR's request. The study must be conducted from TACIR's existing resources.

(d) By no later than January 1, 2027, TACIR shall report its findings to each member of the general assembly and shall provide a copy of the report to the legislative librarian. The report may be delivered electronically.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.